

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 06/29/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
ABOVE.

Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C23-02467
CASE NAME: CHRISTINA CRAVAT VS. BIO-RAD LABORATORIES, INC.
*HEARING ON MOTION IN RE: LEAVE TO FILE A SECOND AMENDED COMPLAINT
FILED BY:
***TENTATIVE RULING**

The Court has reviewed the latest stipulation of the parties to continue the hearing on this motion. (See Stipulation filed on or about June 24, 2026.) The parties are free to continue to meet and confer about Plaintiff's proposed second amended complaint. However, the Court **DENIES** the request for a further continuance, and rules on the motion as follows.

Plaintiff Christina Cuccia Cravat's Motion for Leave to File a Second Amended Complaint is **GRANTED**.

Background

Plaintiff filed the original complaint on October 4, 2023, asserting wrongful termination and FEHA-based discrimination claims arising from defendant Bio-Rad's COVID-19 vaccination policy and her termination on November 4, 2021. Plaintiff retained counsel in January 2024 and wished to amend the complaint. On May 3, 2024, the parties stipulated to dismiss individual defendants and further agreed that if meet and confer efforts failed within 45 days, plaintiff would file a motion for leave to amend. Plaintiff did not file a motion to amend by the deadline by the agreed-upon deadline of June 17, 2024.

Plaintiff filed a second case in this court involving the same parties and facts (No. C25-00892), apparently to preserve claims authorized by a second CRD right to sue letter. On June 25, 2025, the Court granted defendant's ex parte application to consolidate the two cases, designating this case as the lead case, and staying defendant's responsive pleading deadline pending resolution of plaintiff's anticipated motion for leave to amend.

Plaintiff filed this motion on November 21, 2025 and it was heard on April 13, 2026. The Reed Declaration submitted with the motion was defective, lacking a signature under penalty of perjury. The Court continued the motion to April 27, 2026 for plaintiff to file a supplemental declaration of counsel no later than April 17, 2026. Plaintiff timely filed that declaration. The parties stipulated to continue the hearing, first to June 15, 2026, and then to June 29, 2026.

On June 10, 2026, the Court signed a stipulation continuing this motion to June 29, 2026. The stipulation provided that if the parties could not agree on a proposed form of second amended complaint, they would file a joint list of disputed issues along with competing versions of a second amended complaint.

Analysis

The procedural deficiencies identified in the motion have been cured. Plaintiff submitted a supplemental declaration signed under penalty of perjury. In defendant's original opposition brief, it argued that plaintiff's proposed pleading contained conclusory allegations unsupported by fact, that certain claims are time barred, that claims fail to relate back to the original complaint, that the workers compensation exclusivity rule applies, and that the continuing violation doctrine does not save time-barred allegations. Defendant also argued it would suffer prejudice if leave were granted because of a dramatic expansion of claims, an associated increase in discovery scope and costs, and the staleness of evidence almost four years after plaintiff was terminated.

The Court finds defendant's prejudice argument unpersuasive because the claims Plaintiff seeks to add are at issue in the consolidated action. Denying leave to amend would not eliminate those claims but would force them to proceed under a separate pleading, unnecessarily complicating the litigation. Defendant's remaining arguments go to the sufficiency of the proposed pleading. Courts generally do not consider such arguments on a motion for leave to amend because these matters can be addressed via an appropriate pleading challenge, an evidentiary-based motion, or at trial. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

The parties' stipulation contemplates that if they cannot reach agreement, they will submit a joint list

of disputed issues and competing versions of a second amended complaint, leaving it to the Court to decide which version gets filed. The Court declines to proceed on that basis. Plaintiff may file plaintiff's proposed second amended complaint. Defendant will have the opportunity to challenge the sufficiency of the pleading once it is filed.

Disposition

The motion is **GRANTED**. Plaintiff shall file and serve an amended complaint no later than July 15, 2026. Defendant's time to respond shall run from service. PLAINTIFF TO PREPARE THE ORDER AFTER HEARING.

2. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. GOLD COAST PIPELINES, INC. A CALIFORNIA CORPORATION
***HEARING ON MOTION IN RE: SEAL**
FILED BY: GOLD COAST PIPELINES, INC. A CALIFORNIA CORPORATION
TENTATIVE RULING:

Defendants Gold Coast Pipelines, Inc. and David Seeno ("Defendants") filed a Motion to Seal on February 13, 2026 (the "**2/13/26 Motion to Seal**"). The Motion to Seal was set for hearing on June 29, 2026. The motion is unopposed.

This 2/13/26 Motion to Seal seeks sealing of portions of several pleadings filed in connection with a prior discovery referee motion (the "Prior Discovery Referee Motion").

That motion was ruled upon by the Court. See Order entered March 2, 2026 (as to hearing conducted February 23, 2026 after being advanced from May 11, 2026) (the "3/2/26 Order").

This matter is one of a number of motions to seal filed along with various motions and other pleadings. In its discretion, the Court makes certain further orders herein as to the other pending motions to seal, as discussed below.

On January 6, 2026, plaintiff David T. Seeno ("Plaintiff") filed a motion to compel further responses to discovery. That same day, a companion motion to seal ("**1/6/26 Motion to Seal**") was filed Plaintiff. Both motions were given a hearing date of June 22, 2026. The 1/6/26 Motion to Seal was later continued to July 27, 2026.

On February 25, 2026, Plaintiff filed a Demurrer to the Cross-Complaint of Cross-Complainant and Defendant Albert D. Seeno, Jr. ("ADSJ"). That same day, a companion motion to seal ("**2/25/26 Motion to Seal**") was filed Plaintiff. Both motions were given a hearing date of July 27, 2026.

Background

This motion seeks to seal portions of the reply papers submitted in connection with the Prior Discovery Referee Motion (the "Portions to be Sealed"). The subject pleadings were filed on February 13, 2026 with the Portions to be Sealed redacted from the public filing.

The Court has already heard and decided the underlying motion to which the pleading relates. It does not appear that the Court ruled on the Motion to Seal as part of that ruling. See Order entered February 5, 2026. See 3/2/26 Order.